

UFS/NPA ITSOAP PROGRAMME STUDENT DECLARATION AND UNDERTAKING

INTRODUCTORY DECLARATION

The UFS/NPA ITSOAP Programme provides selected law students with an opportunity to obtain supervised exposure to the practical functioning of the prosecutorial environment and the administration of criminal justice.

Participation in this programme places students in a professional environment where they may be exposed to sensitive legal processes, confidential information, and interactions involving prosecutors, witnesses, law enforcement officials, and other stakeholders within the criminal justice system.

Students participating in the programme are therefore expected to conduct themselves in a manner consistent with the ethical standards, professional responsibilities, and integrity required within the legal profession.

By signing this declaration, I acknowledge that my participation in the programme entails significant responsibilities regarding confidentiality, professionalism, ethical conduct, and respect for the rule of law.

I further acknowledge that participation in the programme is a privilege and that failure to comply with the standards and obligations outlined in this declaration may result in the termination of my participation in the programme and any other consequences that may arise in accordance with applicable institutional or legal requirements.

This Declaration and Undertaking is made by the undersigned student participating in the UFS/NPA ITSOAP Programme, implemented in collaboration between the Faculty of Law of the University of the Free State and the Black Lawyers Association Student Chapter - UFS.

By signing this declaration, I acknowledge that participation in the programme requires adherence to professional, ethical, and legal standards consistent with the values of the legal profession and the administration of justice.

1. STUDENT DETAILS (SYSTEM-GENERATED)

The following information is captured as part of the online application process and forms an integral part of this Declaration and Undertaking:

- Full Name
- Student Number
- Identity Number / Passport Number
- Degree Programme
- Contact Number
- Email Address

All details are submitted and verified by the applicant during the online application process and are deemed to be true and correct.

The applicant acknowledges that this information will be used for identification, communication, and administrative purposes related to the programme.

2. PURPOSE OF THIS DECLARATION

The purpose of this declaration is to confirm that I understand and agree to comply with the responsibilities, rules, and ethical obligations associated with participation in the UFS/NPA ITSOAP Programme.

3. STUDENT UNDERTAKINGS

I hereby undertake and agree that I shall:

3.1 Identification

3.1.1 At all times identify myself using my official identity document and valid student card when requested by authorised officials.

3.1.2 Carry my identity document and student card with me at all times while participating in the programme.

3.2 Supervision

3.2.1 Report to and remain under the supervision of my designated prosecutor or authorised supervisor at all times.

3.2.2 Follow all lawful instructions provided by the supervising prosecutor or authorised programme officials.

3.3 Confidentiality

3.3.1 Maintain strict confidentiality regarding all information encountered during the programme.

3.3.2 Not disclose, reproduce, record, or communicate any privileged or confidential information relating to:

- criminal cases
- dockets and official documents
- witnesses or victims
- internal prosecutorial discussions
- court proceedings and preparation processes

3.3.3 Acknowledge that the duty of confidentiality continues even after the completion or termination of the programme.

3.3.4 Comply fully with the Protection of Personal Information Act (POPIA), the National Prosecuting Authority Code of Conduct, and all applicable ethical standards governing legal professionals.

3.4 Professional Conduct

3.4.1 Conduct myself in a dignified, respectful, and professional manner at all times.

3.4.2 Uphold the values and principles contained in the Constitution of the Republic of South Africa.

3.4.3 Refrain from engaging in any conduct that may bring the programme, the National Prosecuting Authority, the University of the Free State, or the legal profession into disrepute.

3.5 Prohibition of Personal Tasks

3.5.1 Not perform personal work, errands, or non-professional tasks for prosecutors or other officials.

4. PROGRAMME GUIDELINES

4.1 Identification and Dress Code

4.1.1 I acknowledge that I must be identifiable at all times and therefore undertake to carry my identity document and student card during programme activities.

4.1.2 I shall adhere to the required court dress code, namely:

- White shirt or blouse
- Black skirt or black pants/trousers
- Dark, neat shoes

4.1.3 I shall adhere to the official working hours communicated for the programme and shall not be absent without prior permission from my supervising prosecutor or authorised programme official.

4.2 Scope of Exposure

4.2.1 I understand that my participation in the programme is observational and educational in nature.

4.2.2 I may observe activities including, but not limited to:

- reading and preparation of case dockets
- consultation with witnesses
- legal research and case preparation
- court attendance
- administrative tasks related to prosecutorial work

4.2.3 I acknowledge that access to dockets and official documents may be granted under supervision only, and that certain sensitive files may remain restricted.

4.2.4 I may participate in supervised consultations with witnesses and stakeholders such as members of the South African Police Service or social workers, but I shall not conduct individual consultations or discussions with such persons.

4.3 Supervision and Confidentiality

4.3.1 I shall at all times be accompanied by and function under the supervision of a designated prosecutor or authorised official.

4.3.2 I shall not engage in independent consultations with witnesses, complainants, accused persons, or stakeholders.

4.3.3 I acknowledge that all discussions, documents, communications, and case materials encountered during the programme are privileged and confidential.

4.3.4 Any breach of confidentiality, ethical rules, or professional conduct requirements may result in immediate termination of my participation in the programme.

5. ACKNOWLEDGEMENT OF PROGRAMME RULES

I acknowledge that failure to comply with this declaration or any programme guidelines may result in:

- Immediate termination of my participation in the programme;
- Possible disciplinary action by the University of the Free State;
- Possible legal consequences where applicable.

6. COMPLIANCE WITH PROFESSIONAL STANDARDS

6.1 I acknowledge that the prosecutorial environment requires high ethical and professional standards.

6.2 I undertake to familiarise myself with and respect the professional standards and expectations applicable to officials of the National Prosecuting Authority, including the requirement that persons associated with prosecutorial functions be regarded as fit and proper.

6.3 I further undertake to familiarise myself with and comply with the Faculty of Law Code of Conduct and any relevant University policies governing student behaviour.

6.4 I understand that conduct inconsistent with these standards may result in the termination of my participation in the programme and may also result in disciplinary action in accordance with applicable institutional rules.

7. VOLUNTARY PARTICIPATION AND REPRESENTATION

7.1 I acknowledge that my participation in the UFS/NPA ITSOAP Programme is entirely voluntary.

7.2 I further acknowledge that, while participating in the programme, my conduct may reflect not only on myself but also on the institutions associated with the programme, including the University of the Free State and the National Prosecuting Authority.

7.3 I therefore undertake to conduct myself at all times in a manner that upholds the dignity, integrity, and professional standards expected of a law student participating in a professional legal environment.

7.4 I understand that failure to uphold these standards may result in the immediate termination of my participation in the programme and may further expose me to disciplinary action by the University of the Free State, as well as any other legal or administrative consequences that may be deemed appropriate by the relevant authorities or stakeholders involved in the programme.

8. DECLARATION AND DIGITAL ACKNOWLEDGEMENT

By proceeding with and submitting the online application, I hereby confirm that:

- I have read and understood the contents of this Student Declaration and Undertaking;
- I agree to be bound by and to comply with all obligations, rules, and standards contained herein;
- I acknowledge and accept the professional, ethical, and legal responsibilities associated with participation in the programme;
- I understand that this electronic acknowledgement constitutes a legally binding declaration equivalent to a written signature.

I further acknowledge that any misrepresentation, non-compliance, or breach of these terms may result in disciplinary action, removal from the programme, or any other consequences deemed appropriate by the relevant stakeholders.

9. SYSTEM CONFIRMATION

This declaration is electronically recorded upon submission of the online application.

- Applicant Name: *Auto-generated from application data*
- Date of Submission: *System-generated*
- IP Address / Digital Identifier: *System-recorded (where applicable)*